



**U.S. Citizenship
and Immigration
Services**

**Non-Precedent Decision of the
Administrative Appeals Office**

In Re: 36432847

Date: JAN. 17, 2025

Appeal of Texas Service Center Decision

Form I-140, Immigrant Petition for Alien Workers (Multinational Managers or Executives)

When U.S. Citizenship and Immigration Services (USCIS) denies or dismisses a benefit request, the Agency must state the specific reasons for the adverse decision. A detailed decision ensures that a petitioner has a fair opportunity to appeal a motion dismissal and that we can meaningfully review the decision.

Here, the Director of the Texas Service Center did not sufficiently explain her reasons for dismissing the Petitioner's motion to reconsider. We will therefore withdraw the decision and remand the matter for entry of a new decision consistent with the following analysis.

I. LAW

The Petitioner, an operator of restaurants and sweets shops, seeks to employ the Beneficiary as a quality assurance manager. The company requests his classification under the employment-based, first-preference (EB-1) immigrant visa category as a "multinational manager." *See* Immigration and Nationality Act (the Act) section 203(b)(1)(C), 8 U.S.C. § 1153(b)(1)(C). This category allows multinational organizations to sponsor noncitizens to permanently work for the organizations in the United States in managerial or executive capacities. *Id.*

To qualify as a multinational manager or executive, a noncitizen, in the three years before their entry into the United States as a nonimmigrant, must have worked abroad for at least one year in a managerial or executive capacity. Section 203(b)(1)(C) of the Act; 8 C.F.R. § 204.5(j)(3)(i)(B). Also, their U.S. petitioner must intend to employ them in a managerial or executive capacity and be the same entity that employed them abroad, or a subsidiary or affiliate of their foreign employer. Section 203(b)(1)(C) of the Act; 8 C.F.R. § 204.5(j)(3)(i)(C).

II. FACTS AND PROCEDURAL HISTORY

The Beneficiary, an Indian native and citizen, entered the United States in L-1A nonimmigrant visa status in March 2018. *See* section 101(a)(15)(L) of the Act, 8 U.S.C. § 1101(a)(15)(L). The status, which USCIS extended for about five years, allowed the Petitioner to temporarily employ him in the

offered position of quality assurance manager. *See* 8 C.F.R. § 214.2(l)(12)(i) (allowing extension of L-1A status for up to seven years).

In December 2020, while the Beneficiary remained in L-1A nonimmigrant status with the Petitioner in the United States, the company filed this immigrant petition. The Director approved the petition the same month. In October 2023, however, the Director mailed a notice of intent to revoke (NOIR) the petition's approval. *See* section 205 of the Act, 8 U.S.C. § 1155; 8 C.F.R. § 205.2(a).

The NOIR alleged insufficient evidence of the Petitioner's required intent to employ the Beneficiary in the United States in the claimed managerial capacity or his required work abroad in the same claimed capacity. *See Matter of Ho*, 19 I&N Dec. 582, 590 (BIA 1988) (stating that a petition's erroneous denial may justify its revocation). The NOIR also alleged that the company and the Beneficiary willfully misrepresented his U.S. current position and duties.

The Petitioner timely responded to the NOIR, contesting the alleged revocation grounds. The Director, however, revoked the petition's approval on both grounds in April 2024. The following month, the company filed a motion to reconsider the revocation. *See* 8 C.F.R. § 103.5(a)(3). In July 2024, the Director dismissed the motion.

On appeal, the Petitioner contends, in part, that the Director's decision does not adequately explain the reasons for the motion's denial, thereby depriving the company of a fair chance to appeal the decision. The company bears the burden of demonstrating eligibility for the requested benefit by a preponderance of the evidence. *Matter of Chawathe*, 25 I&N Dec. 369, 375-76 (AAO 2010). We review questions in this matter de novo. *Matter of Christo's, Inc.*, 26 I&N Dec. 537, 537 n.2 (AAO 2015).

III. ANALYSIS

A motion decision must identify and fully explain its reasoning. *Matter of M-P-*, 20 I&N Dec. 786, 787-88 (BIA 1994). Otherwise, such a decision deprives a party of a fair opportunity to contest the opinion on appeal and us of the ability to meaningfully review the decision. *Id.*; *see also* 8 C.F.R. § 103.2(a)(1)(i) (requiring USCIS, in the context of application and petition denials, to "explain in writing the specific reasons for denial").

The Director's written decision provides two reasons for dismissing the Petitioner's motion to reconsider. First, the decision states: "The evidence submitted with the motion to reconsider does not establish that the requirements for filing a motion to reconsider have been met." The decision notes that all motions must include "a statement about whether or not the validity of the unfavorable decision has been or is the subject of any judicial proceeding and, if so, the court, nature, date, and status or result of the proceeding." *See* 8 C.F.R. § 103.3(a)(1)(iii)(C). The decision also notes that motions to reconsider must establish that USCIS' prior decision misapplied law or Agency policy based on the record at the time of the decision. *See* 8 C.F.R. § 103.5(a)(3). The Director's decision, however, does not indicate which motion requirement(s) were purportedly unmet or explain why they were unsatisfied. Thus, the decision does not fully explain its reasoning. *See Matter of M-P-*, 20 I&N Dec. at 787-88.

The Director's decision also states: "The petitioner did not establish that the beneficiary qualifies for this classification with all of the submitted evidence based on the preponderance of the evidence standard." As with the other dismissal ground, the decision does not detail the specific reasons for this adverse determination. The decision does not discuss evidence or the classification's requirements. Nor does it explain why the Petitioner's evidence fell short of the requirements. In the motion, the Petitioner contended that the Director disregarded evidence and arguments, misconstrued exhibits, and based the revocation, in part, on information unstated in the NOIR. *See Matter of Arias*, 19 I&N Dec. 568, 570 (BIA 1988) (finding that a revocation can only be grounded on, and a petitioner need only respond to, the factual allegations in a NOIR). The Director's motion decision, however, does not address those arguments.

The Director's decision does not fully explain its reasons for dismissing the Petitioner's motion to reconsider. We will therefore withdraw the decision and remand the matter.

On remand, the Director should reconsider the Petitioner's motion and enter a new decision. The new decision, if a dismissal, should address the company's arguments on motion and specify the reasons for the decision.

ORDER: The Director's decision is withdrawn. The matter is remanded for entry of a new decision consistent with the foregoing analysis.